

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-025
Amendments to Title 5 of the Chickasaw Nation Code
(Court-Appointed Counsel Fees)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for court-appointed counsel fees, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 2, Article B, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 5-202.34

**INDIGENT DEFENDANT IN CIVIL CONTEMPT ACTION;
RIGHT TO COUNSEL; ATTORNEY FEES.**

A. In a civil contempt action which may result in the incarceration of a defendant who appears without counsel, the court must inform the defendant that he has a right to counsel and that if he is financially unable to employ counsel and desires such, the court must assign counsel to defend him. Only after receiving notice of this right, can the defendant knowingly and intelligently waive his right to counsel. A defendant who desires counsel and can establish indigency under the normal standards for appointment of counsel in a criminal case, shall have an attorney appointed to represent him.

B. The court-appointed attorney shall represent the defendant until final disposition of the civil contempt action and shall receive compensation, payable from the court fund, in ~~an~~ **a reasonable** amount set by the ~~Court~~ **court for such court-appointed representation**, ~~not to exceed the following amounts: For a non-jury trial \$100 For a jury trial \$250~~

SECTION 5-202.35

**CRIMINAL ACTIONS; COURT-APPOINTED COUNSEL;
ATTORNEY FEES.**

A. In a criminal action, if an indigent defendant requests court-appointed counsel in accordance with Section 5-501.4, the court must assign counsel to represent the defendant.

B. A court-appointed attorney shall represent the defendant until final disposition of the criminal action and shall receive compensation, payable from a fund established expressly for the purpose of paying court-appointed counsel, in an **a reasonable** amount set by the court **for such court-appointed representation**, ~~not to exceed seventy five dollars (\$75) per hour up to five hundred dollars (\$500) maximum per case, absent prior approval of the Court.~~

SECTION 5-202.36**CIVIL ACTIONS INVOLVING CHILDREN; COURT-APPOINTED COUNSEL; ATTORNEY FEES.**

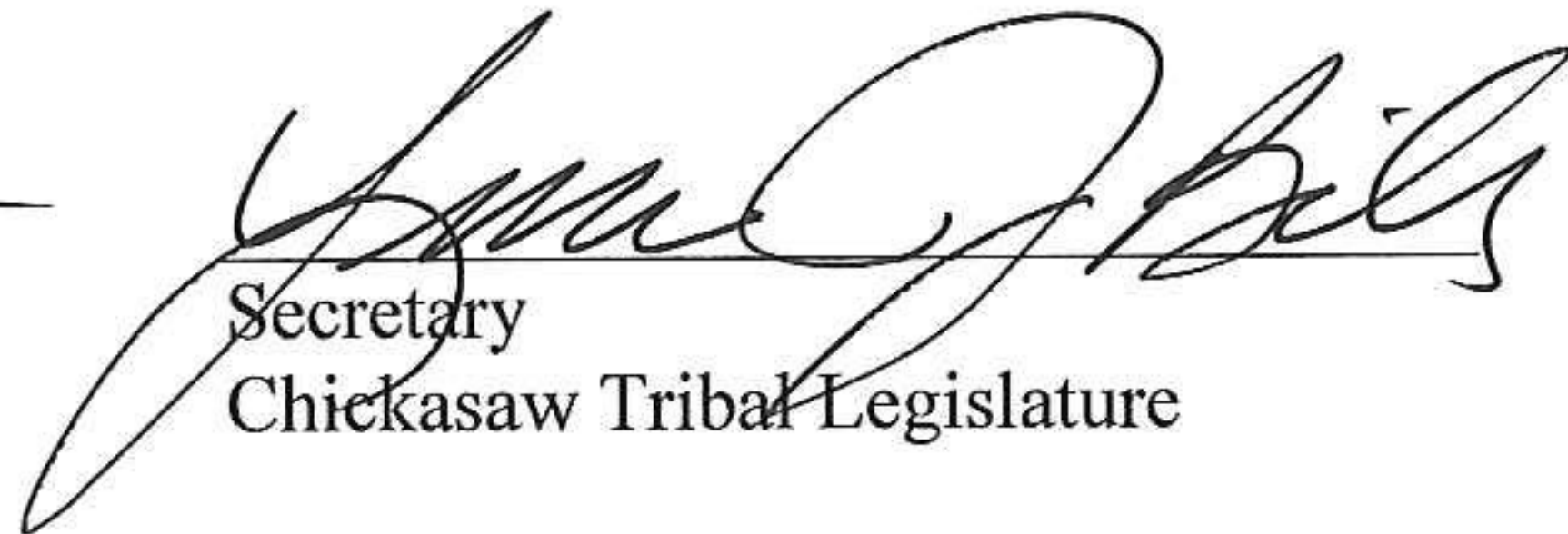
A. In civil actions involving children, the ~~Court~~ **court** may appoint counsel, upon motion or *sua sponte*, in any capacity as determined by the ~~Court~~ **court**. The court-appointed attorney shall provide services as assigned by the ~~Court~~ **court** until he is discharged from that duty.

B. Court-appointed counsel in civil actions shall receive compensation, payable from a fund established expressly for the purpose of paying court-appointed counsel, in an **a reasonable** amount set by the ~~Court~~ **court** **for such court-appointed representation**, ~~not to exceed seventy five dollars (\$75) per hour up to five hundred dollars (\$500) maximum per case, absent prior approval of the Court.~~

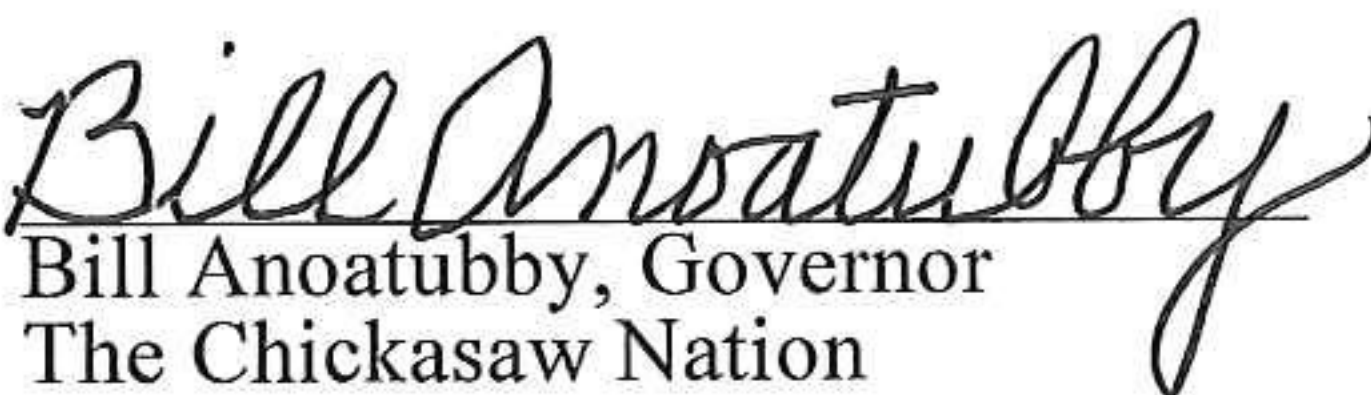
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 2021, by a vote of 12 ayes, 0 nays and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 24 2021

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Explanation:

This resolution amends three sections in Title 5. The revisions allow the court to set fees for court-appointed attorneys.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature